

5. 9:00 AM CASE NUMBER: C23-02039
CASE NAME: OLD REPUBLIC NATIONAL TITLE INSURANCE COMPANY VS. RICKY HORTON
HEARING IN RE: ORDER VACATING ORDER DEEMING MATTERS ADMITTED, AND FOR ORDER
DEEMING RESPONSES TO REQUESTS FOR ADMISSION-SET ONE
FILED BY:
TENTATIVE RULING:

See LINE 4 above.

6. 9:00 AM CASE NUMBER: C24-00008
CASE NAME: KIM HUNTER-REAY VS. EDWARD KRAVITZ
*HEARING ON MOTION IN RE: TERMINATING SANCTIONS
FILED BY: KRAVITZ, EDWARD
TENTATIVE RULING:

Defendants Carol Kravitz and Edward Kravitz (“Defendants”) filed a Motion for Terminating Sanctions on January 23, 2026 (the “Motion for Sanctions”). The Motion for Sanctions was set for hearing on June 8, 2026. The motion was duly served. The motion is unopposed.

Background

Plaintiff’s Motion for Sanctions seeks the imposition of a terminating sanction against plaintiff Kim Hunter-Reay (“Plaintiff”) because Defendants contend that Plaintiff has defied the Court’s prior discovery orders. Alternatively, Plaintiff seeks “other such sanctions or orders” as may be “appropriate.”

The Motion for Sanctions is supported by the Declaration of Melissa Grant Zamora. See Declaration of Melissa Grant Zamora filed January 23, 2026 as part of the Motion for Sanctions (the “Supporting Declaration”).

A Notice of Non-Opposition was filed on June 1, 2026 by Defendants.

Analysis

Defendants make reference to a prior order issued by the Court compelling Plaintiff to provide further responses to certain discovery propounded by Plaintiff. See Order dated October 15, 2025 (the “October 15th Order”). Among other things, Plaintiff was ordered to provide responses to the subject discovery (the “Discovery Responses”):

IT IS HEREBY ORDERED that Defendant’s unopposed motion to compel is granted.
Plaintiff shall serve code compliant verified responses to form interrogatories and special
interrogatories by September 22, 2025.

Plaintiff shall also serve code compliant verified responses to the request for production of
documents by September 22, 2025.

See October 15th Order, p. 1. \$322.84 in monetary sanctions (the “Sanctions”) was also awarded and ordered to be paid by September 22, 2025.[FN1] *Id.*

Despite notice of the October 15th Order, Plaintiff failed to provide any of the Discovery Responses as

ordered. Supporting Declaration, ¶10-11. Plaintiff also failed to pay the Sanctions ordered. *Id.* at ¶11.

Plaintiff's failure to comply with the Court's October 15th Order, including providing the ordered Discovery Responses by the court imposed deadline, constitutes failing to respond to an authorized method of discovery, pursuant to Code of Civil Procedure section 2023.010(d) as well as disobeying a court order to provide discovery, pursuant to Code of Civil Procedure section 2023.010(g).

The Court has considered the appropriate remedy, including whether to impose an incremental sanction so as to give Plaintiff an opportunity to comply before resorting to terminating or issue sanctions.

The Court finds that the just and appropriate remedy is the issuance of a terminating sanction. Plaintiff has failed to provide responses to duly propounded discovery which Plaintiff's counsel confirmed was received in December 2024. See Declaration filed May 1, 2025, ¶2.[FN2] The Discovery Responses have been past due for nearly 17 months at this point. See *id.* at ¶2. Plaintiff failed to meet and confer on the underlying discovery motion. Plaintiff failed to engage with this follow up motion or take any action to even communicate with Defendants about remedying the non-compliance. See Supporting Declaration, ¶10-11.

Defendants have been prejudiced in their ability to defend this case as a result of the non-compliance. See Supporting Declaration, ¶12.

The Court finds that the foregoing conduct by Plaintiff constituted conduct that was a misuse of the discovery process within the meaning of Code of Civil Procedure section 2023.030 and that such conduct warrants the imposition of a terminating sanction.

Given the foregoing and having considered the totality of the circumstances, including Plaintiff's utter failure to even appear to address this motion and the wholesale failure to comply with the Court's order to provide the Discovery Responses, the Court concludes that a terminating sanction by an order dismissing Plaintiff's action pursuant to Code of Civil Procedure section 2023.030(d)(3) is just and appropriate.

The history of Plaintiff's non-compliance is indicative of a pervasive, ongoing and willful failure to comply with discovery obligations and there is no indication that the imposition of further monetary sanctions or other less remedies will result in compliance. Ultimate discovery sanctions are justified where there is a willful discovery order violation, a history of abuse, and evidence showing that less severe sanctions would not produce compliance with discovery rules. *Van Sickle v. Gilbert* (2011) 196 Cal.App.4th 1495, 1516.

FN1: The hearing on the motion was heard on August 25, 2026. Accordingly, the Court gave Plaintiff nearly a month to pay the Sanctions, notwithstanding the date of entry of the final order.

FN2: The Court is mindful of and has considered the pleadings filed in connection with the underlying motion to compel.

Disposition

The Court further finds and orders as follows:

1. The Motion for Sanctions is **GRANTED**.
2. Plaintiff's Complaint filed January 2, 2024 is **DISMISSED**.
3. The Court shall issue the order after hearing.

7. 9:00 AM CASE NUMBER: C24-00356
CASE NAME: SUSAN SHINTAKU VS. CITY OF ANTIOCH
*HEARING ON MOTION FOR DISCOVERY TO COMPEL DEF CITY OF ANTIOCH'S FURTHER RESPONSES
TO REQUESTS FOR ADMISSION SET THREE
FILED BY: SHINTAKU, SUSAN
TENTATIVE RULING:

Plaintiff Susan Shintaku ("Plaintiff") filed a Motion to Compel Defendant City of Antioch's Further Responses to Requests for Admission Set Three on December 30, 2025 (the "Motion to Compel Further Responses to RFAs"). The Motion to Compel Further Responses to RFAs was set for hearing initially on June 1, 2026. Later, the Court, sua sponte, continued the motion to June 8, 2026.

Background

No opposition papers have been filed. However, on June 2, 2026, the moving party filed a "Notice of Rescheduling Motions" seeking to reschedule this and another discovery motion set for hearing on June 15, 2026 regarding Form Interrogatories, Set Three (the "Motion to Compel Further Responses to FROGS"). The pending discovery motions are referred to herein as the "Discovery Motions."

In light of the foregoing, the Court will continue the motion. The Court also, *sua sponte*, makes the orders below in regard to further meet and confer to be done between the parties regarding the discovery requests at issue in the Discovery Motions.

Disposition

The Court further finds and orders as follows:

1. The Motion to Compel Further Responses to RFAs and the Motion to Compel Further Responses to FROGS are **CONTINUED to August 31, 2026, 9:00 am, in Department 34.**
2. **Pending Discovery Motions and Further Court Ordered Meet and Confer.** The parties are ordered to engage in further meet and confer regarding resolution of the discovery requests and responses at issue in the Discovery Motions **within forty-five (45) days** of the date of this order. If not resolved through such informal talks, the parties are ordered to prepare and submit the following:
 - a. **Joint Separate Statement.** No later than **fifteen (15) days** in advance of the hearing date on the Discovery Motions, the parties shall prepare and file, if all issues have not been resolved, a Joint Separate Statement as to any remaining discovery requests in dispute.
 - b. **Joint Separate Statement Content.** The Joint Separate Statement shall, in a table format with separate rows divided into five separate columns, identify: (1) the discovery request at issue with the full text of the request, (2) the full text of the written response (and containing ONLY the most recent and operative response at issue if a prior supplemental or amended response has been made), (3) the propounding party's contentions regarding any inadequacy of the written discovery response and/or document production; (4) any response by responding party as to why the written discovery response and/or document production is adequate; and (5) any reply by the propounding party to the response. **No single entry on the Joint Separate Statement shall exceed 200 words (except as to the verbatim recitation of the requests and**